

Insha vs The State Of Manipur Represented By Its ... on 17 June, 2022

Author: M.V. Muralidaran

Bench: M.V. Muralidaran

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IN THE HIGH COURT OF MANIPUR

AT IMPHAL
WP(Cril.)No. 04 of 2022

1. Insha, aged about 24 years, D/o Manoor Ahmad Wani of Gulshar Abad, KP Road, Anantnag, Anantnag, Jammu & Kashmir- 192101 presently residing at Khoyathong Pukhri Achouba Mapal, PO & PS Imphal, Imphal West District, Manipur-795001.
2. Rajkumar Bungo Singh, aged about 21 years, s/o Rajkumar Subrata Singh of Khoyathong Pukhri Achouba Mapal, PO & PS Imphal, Imphal West District, Manipur-795001.

..... Pet
- Versus -

1. The State of Manipur represented by its Chief Secretary, Government of Manipur, Imphal-795001;
2. The Chief Secretary, Government of Jammu & Kashmir, Room No.2/7, 2nd Floor Main Building, Civil Secretariat, Jammu,

180001/Room No.307, 3rd Floor, Civil Secretariat, Srinagar,

K-190001;

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3. The Director General of Police, Manipur, Police Head Quarter

Imphal-0795001;

4. The Director General of Police, Jammu & Kashmir, Police Head

Quarter, Srinagar, J & K-192101;

5. Manoor Ahmad Wani aged about 52 years, F/o Insha of Gulshan

abad, KP Road, Anantnag, Anantnag, Jammu & Kashmir-192101.

.... Respondents

BEFORE HON'BLE MR. JUSTICE M.V. MURALIDARAN For the Petitioner : Mr.S. Biswajit Meitei,
Adv.

For the Respondent Nos. 1 &3	:	Mr. H. Samarjit, PP.
For the Respondent Nos.2 & 4	:	None appeared.
For the Respondent no.5	:	None appeared.
Date of order	:	17.06.2022.

JUDGMENT & ORDER
(0ral)

1. Heard Mr.S.Biswajit Meitei, learned counsel, assisted by Mr.O.Ratan Kumar, learned counsel for the petitioner and Mr. H. Samarjit, learned PP WP(Cril) No. 4 of 2022 Page 2 appearing for the respondent Nos 1 & 3. Despite service of notice and the name having been printed in the cause-list, none appeared on behalf of the fifth respondent as well as the respondent No.2 and 4.

[2] This writ petition has been filed to quash the warrant dated 5.4.2022 issued by the learned Chief Judicial Magistrate, Anantnag, J&K in Complaint Case NO.80 of 2022 [Manzoor Ahmad Wani v. Raj Kumar Bungoo Singh] and to provide protection especially when travelling outside the State for their further studies. [3] When the writ petition was taken up for admission 05.05.2022, Mr. S. Biswajit Meitei prayed this Court seeking the police protection along with the stay of the operation of the order passed by the learned Chief Judicial Magistrate, Anand, Jamu & Kashmir.

[4] Admittedly, the order dated 05.04.2022 in Com. Case No. 80 of 2022 passed by the learned Chief Judicial Magistrate, Anantnag, J&K and the prayer sought for by the petitioners to quash that order in prayer No.(c) is not all maintainable on the ground that the order challenged is beyond the jurisdiction of this High Court.

[5] Accordingly, this Court posed a question to Mr. S. Biswajit, learned counsel for the petitioners about the maintainability of this prayer No.(c) in this writ WP(Cril) No. 4 of 2022 Page 3 petition before this Court, Mr. S. Biswajit, learned counsel for the petitioners fairly submitted that he may be permitted to withdraw prayer(c) in this writ petition. [6] Accordingly, the learned counsel for the petitioner has requested that the prayer(c) in this writ petition and the prayer sought for to stay the proceedings of Com. Case No.80 of 2022 may be permitted to be withdrawn and the other prayers may be considered by this Court.

[7] The learned counsel for the petitioners submitted that the first petitioner is Muslim and the second petitioner belongs to Hindu religion. The first petitioner is pursuing 5th Semester in B-Tech Civil and the second petitioner is pursuing 1st year BBA. Both of them fell in love and are living together for quite some time and when they met their parents to declare their relationship status, the parents and family members of the first petitioner refused to accept it, while the parents and family members of the second petitioner accepted the relationship. While saying so, the parents of the first petitioner threatened the first petitioner while visiting Imphal and insisted to accompany them immediately to Anantnag. But the first petitioner refused to accompany her family back to her native place, as there were many cases of honour killing in her native place whenever inter-religion/inter-caste relationship/marriage took place.

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The learned counsel further submitted that the parents and fami

members of the first petitioner left Imphal after threatening the petitioner with dire consequences, if they have continued to live together against their wishes. Since staying of the first petitioner with the second petitioner without any social recognition might attract a social stigma, they got married by performing customary rites and rituals of the second petitioner at the residence of the second petitioner with the blessing of the parents and family members of the second petitioner on 20.2.2022 [9] The learned counsel submitted that after marriage the petitioners are living together

at the residence of the second petitioner. The second petitioner learned that the learned Chief Judicial Magistrate, Anantnag, Jammu and Kashmir issued a search warrant to the second petitioner by taking cognizance of the Complaint Case filed by the father of the first petitioner who is the 5th respondent herein alleging that the second petitioner has wrongfully confined the first petitioner against her wishes. Accordingly, the J&K police personnel are searching the second petitioner without the knowledge of the local police of Imphal.

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The learned counsel urged that the petitioners are majors and a

entitled to choose whoever they wanted to marry/live together and that no law bars an inter-caste/inter-religion marriage. Since the marriage of the petitioners is an inter-religion marriage between Hindu male and Muslim girl against the wishes of the parents and family members of the first petitioner, the petitioners apprehend that their life and liberty is at stake, as they are being threatened by unknown persons. In fact, the parents and family members of the second petitioner are often receiving many phone calls, who identified themselves as relatives of the first petitioner, have threatening with dire consequences. Hence, the petitioners have constrained to file the present writ petition seeking the prayer to give adequate protection to the petitioners.

[11] This Court considered the submissions raised by learned counsel for the petitioner and also perused the materials available on record. [12] Despite service on the respondent Nos. 2, 4 & 5, none appeared on behalf of them. Since the fifth respondent is the main contesting party and taking note of the facts and circumstances of the case, this Court is inclined to proceed further and pass orders.

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[13]

According to the petitioners, while they are studying in Chandi

they fell in love and sometime stayed together. As they are living together for quite a time, they decided to meet their parents to declare their relationship status. Accordingly, they first met the parents of the second petitioner on 9.2.2022 and got blessing from them. When the first petitioner conveyed about their relationship to her parents, her parents visited Imphal on 17.2.2022 to discuss the relationship of the petitioners and its future prospect. But the parents of the first petitioner refused to accept the relationship and threatened the first petitioner to accompany them immediately to Anantnag by stating that she is Muslim and the second petitioner is Hindu. However, the first petitioner refused to accompany her family. As such, the parent of the first

petitioner left Imphal after threatening the petitioners with dire consequences, if they continued to live together against their wishes.

[14] Since staying the first petitioner with the second petitioner may attract a social stigma, having no other alternative, the petitioners got married by performing customary rites of the second petitioner on 20.2.2022 and living happily. While so, the second petitioner came to understand that a Complaint Case has been lodged by the father of the first petitioner (5th respondent herein) WP(Cril) No. 4 of 2022 Page 7 by alleging illegal confinement of the first petitioner by the second petitioner against her wishes. As such, the J&K police personnel are searching the second petitioner by executing a search warrant dated 05.04.2022 issued by the learned Chief Judicial Magistrate, Anantnag.

[15] In respect of search warrant said to have issued by the learned Chief Judicial Magistrate, Anantnag, we have perused the order dated 5.4.2022 passed by the learned Chief Judicial Magistrate on the application seeking proceedings under Section 97 Cr.P.C. Taking note of the facts that the applicant is father of the alleged confinee, the learned Chief Judicial Magistrate, Anantnag issued search warrant to the second petitioner to produce the alleged confinee Isha Manzoor (first petitioner herein) before him and regarding custody, the learned Chief Magistrate ordered that the same will be considered later on. The learned Chief Judicial Magistrate directed that the warrant shall be executed by Senior Superintendent of Police, Anantnag.

[16] As far as the illegal confinement and legal confinement of the first petitioner is concerned, the same cannot be decided in the present petition exercising jurisdiction under Article 226 of the Constitution of India. Since the WP(Cril) No. 4 of 2022 Page 8 order of the learned Chief Judicial Magistrate dated 5.4.2022 is pursuant to the application made by the father of the alleged confinee and upon satisfaction, this Court exercising its jurisdiction cannot question the same and the petitioners themselves not pressed the prayer for quashing. On the other hand, it is the party concerned, who has to approach the concerned Court and explain that there is no illegal confinement and the confinee is living with him with consent that too after marrying. Likewise, notices were also served to the respondents 2 & 4 but none of them also appeared.

[17] Coming to the protection sought for by the petitioners, nobody is here to oppose the prayer. The fifth respondent is the father of the first petitioner and despite service, he has not turned up to oppose the prayer for giving protection. [18] Admittedly, the petitioners are majors and are entitled to choose whoever they wanted to marry/live together. Since the marriage of the petitioners is an inter-religion marriage between a Hindu male and a Muslim girl against the wishes of the parents of the girl, the petitioners apprehend that their life and liberty is at stake as they are being threatened by unknown persons. It is stated that now the petitioners are living in the family of the second petitioner.

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The learned counsel for the petitioners submitted that in simil

situation, the Hon'ble Apex Court and the High Courts granted protection wherein the parents being unhappy lodged complaint case. There is no hard and fast rule to refuse protection in such kind of inter-caste/inter-religion marriage. The petitioners have also given an assurance that if need arises, they are ready and willing to move to the learned Chief Judicial Magistrate, Anantnag for recording their statements and to demonstrate the fact that a false case has been registered against the second petitioner.

[20] The Hon'ble Apex Court, time and again, held that the caste system is a curse on the nation and once a person becomes major, he or she can marry whosoever he or she likes, and if parents of such boy or girl do not approve of such inter-caste/inter-religion marriage, they can simply cut-off social relations with son or daughter, but they cannot give threats or commit or instigate acts of violence.

[21] In *Lata Singh v. State of U.P. and another*, (2006) 5 SCC 475, the Hon'ble Apex Court held as under:

WP(Cril) No. 4 of 2022 Page 10 "17. This is a free and democratic country, and once a person becomes a major he or she can marry whosoever he/she likes. If the parents of the boy or girl do not approve of such inter-caste or inter-religious marriage the maximum they can do is that they can cut-off social relations with the son or the daughter, but they cannot give threats or commit or instigate acts of violence and cannot harass the person who undergoes such inter-caste or inter-religious marriage. We, therefore, direct that the administration/police authorities throughout the country will see that it that if any boy or girl who is a major undergoes inter- caste or inter-religious marriage with a woman or man who is a major, the couple is not harassed by anyone nor subjected to threats or acts of violence, and anyone who gives such threats or harasses or commits acts of violence either himself or at his instigation, is taken to task by instituting criminal proceedings by the police against such person and further stern action is taken against such persons as provided by law."

[22] In the case on hand, the petitioners state that when the parent of the first petitioner left Imphal, they threatened the petitioners with dire consequences. Further, the petitioners in the writ petition state that their life and liberty is at stake, as they are being threatened by unknown persons personally and also over phone.

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Admittedly, the petitioners have approached this Court to safeg

their life and liberty by invoking the extraordinary jurisdiction of this Court in order to meet the unprecedented situation on the expectation that this Court has wide power of a Constitutional Court as enshrined in the Constitution of India. The purpose of the inherent and plenary powers of the High Court is to advance substantial justice. In the instant case, nobody is there to oppose the prayer of the petitioners. As stated supra, the fifth respondent who is father of the first petitioner despite service has not entered appearance. In the facts and circumstances of the case, an appropriate direction is required to be granted by this Court exercising jurisdiction under Article 226 of the Constitution of India for the safeguard of the rights and liberty of the petitioners.

[24]

In the result,

(a) The writ petition is disposed of.

(b) The official respondents are directed to forthwith give

adequate protection to the petitioners through their subordinates/police personnel, as the case may be.

(c) If the petitioners intend to travel outside the State, they are directed to inform the jurisdictional police, WP(Cril) No. 4 of 2022 Page 12 who in turn are directed to give necessary protection to the petitioners.

(d) No costs.

JUDGE

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